

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 ENGROSSED SENATE
5 BILL NO. 1775

By: Pederson of the Senate

and

Dempsey of the House

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9 An Act relating to municipalities; amending 11 O.S.
10 2021, Section 14-111, which relates to the
11 enforcement and penalties for violation of municipal
12 ordinances; clarifying that penalties for certain
13 municipal ordinances may be equal to penalties in
14 state statute; declaring certain amount of certain
15 fine void and unenforceable in certain circumstance;
16 updating statutory references; updating statutory
17 language; and declaring an emergency.

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24 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 11 O.S. 2021, Section 14-111, is
amended to read as follows:

Section 14-111. A. The governing body of a municipality may
provide for enforcement of its ordinances and establish fines,
penalties, or imprisonment, as authorized by subsections B through D
of this section, for any offense in violation of its ordinances,
which shall be recoverable together with costs of suit. The
governing body may provide that any person fined for violation of a

1 municipal ordinance who is financially able but refuses or neglects
2 to pay the fine or costs may be compelled to satisfy the amount owed
3 by working on the streets, alleys, avenues, areas, and public
4 grounds of the municipality, subject to the direction of the street
5 commissioner or other proper officer, at a rate per day as the
6 governing body may prescribe by ordinance, but not less than Fifty
7 Dollars (\$50.00) per day for useful labor, until the fine or costs
8 are satisfied.

9 B. 1. Except for municipal ordinances ~~related to prostitution~~
10 ~~and~~ as otherwise provided in this ~~section~~ subsection, cities having
11 a municipal criminal court of record may enact ordinances
12 prescribing maximum fines of One Thousand Two Hundred Dollars
13 (\$1,200.00) and costs or imprisonment not exceeding six (6) months
14 or both ~~the~~ such fine and imprisonment, but shall not have authority
15 to enact any ordinance making unlawful an act or omission declared
16 by state statute to be punishable as a felony.

17 2. Cities having a municipal criminal court of record may enact
18 ordinances prescribing maximum fines of One Thousand Dollars
19 (\$1,000.00) and costs or imprisonment not exceeding six (6) months
20 or both such fine and imprisonment for violations of municipal
21 ordinances regulating the pretreatment of wastewater and regulating
22 stormwater discharges.

23 3. Cities having a municipal criminal court of record may enact
24 ordinances prescribing maximum fines of One Thousand Two Hundred

1 Fifty Dollars (\$1,250.00) and costs or imprisonment not exceeding
2 six (6) months or both such fine and imprisonment for alcohol-
3 related or drug-related traffic offenses. The court shall remit
4 Fifty Dollars (\$50.00) of each alcohol fine or deferral fee to a
5 fund of the municipality that shall be used to defray costs for
6 enforcement of laws relating to juvenile access to alcohol, other
7 laws relating to alcohol and other intoxicating substances, and
8 traffic-related offenses involving alcohol or other intoxicating
9 substances. The sum of Fifteen Dollars (\$15.00) shall be assessed
10 in every case for violations of municipal ordinances relating to the
11 offense of driving under the influence of alcohol or other
12 intoxicating substance and shall be remitted to the credit of the
13 Oklahoma Impaired Driver Database Revolving Fund created pursuant to
14 Section ~~8~~ 11-902d of ~~this act~~ Title 47 of the Oklahoma Statutes.

15 ~~2.~~ 4. For violations of municipal ordinances relating to
16 prostitution, including, but not limited to, engaging in
17 prostitution or soliciting or procuring prostitution, a municipal
18 criminal court of record may enact ordinances prescribing an
19 imprisonment not to exceed six (6) months, and fines as follows:

20 a. a fine not to exceed Two Thousand Five Hundred Dollars
21 (\$2,500.00) upon the first conviction for violation of
22 any such ordinances,
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1 **b.** a fine ~~of not more than~~ to exceed Five Thousand
2 Dollars (\$5,000.00) upon the second conviction for
3 violation of any of such ordinances, and

4 **c.** a fine ~~of not more than~~ to exceed Seven Thousand Five
5 Hundred Dollars (\$7,500.00) upon the third or
6 subsequent convictions for violation of any of such
7 ordinances, or both such fine and imprisonment as well
8 as a term of community service ~~of~~ not less than forty
9 (40) nor more than eighty (80) hours.

10 C. **1.** Municipalities having a municipal court not of record
11 may enact ordinances prescribing maximum fines pursuant to the
12 provisions of this subsection. A municipal ordinance may not impose
13 a penalty, including fine or deferral fee in lieu of a fine and
14 costs, ~~which~~ that is greater than that established by statute for
15 the same offense.

16 **2.** The maximum fine or deferral fee in lieu of a fine for any
17 traffic-related offenses relating to speeding or parking, provided
18 that the penalty for such offense is not established by statute,
19 shall not exceed Two Hundred Dollars (\$200.00). For any traffic-
20 related offenses relating to speeding or parking with a penalty
21 established by statute, including fine or deferral fee in lieu of a
22 fine and costs, a municipal ordinance may impose a penalty that is
23 less than or equal to the penalty established by statute for the
24 same offense.

1 3. The maximum fine or deferral fee in lieu of a fine for
2 alcohol-related or drug-related offenses, provided that the penalty
3 for such offense is not established by statute, shall not exceed
4 Eight Hundred Dollars (\$800.00). For ~~all other offenses, the~~
5 ~~maximum fine or deferral fee in lieu of a fine shall not exceed~~
6 ~~Seven Hundred Fifty Dollars (\$750.00)~~ any alcohol-related or drug-
7 related offenses with a penalty established by statute, including
8 fine or deferral fee in lieu of a fine and costs, a municipal
9 ordinance may impose a penalty that is less than or equal to the
10 penalty established by statute for the same offense. The court
11 shall remit Fifty Dollars (\$50.00) of each alcohol fine or deferral
12 fee to a fund of the municipality that shall be used to defray costs
13 for enforcement of laws relating to juvenile access to alcohol,
14 other laws relating to alcohol and other intoxicating substances,
15 and traffic-related offenses involving alcohol or other intoxicating
16 substances.

17 4. For all other offenses, provided that the penalty for such
18 offenses are not established by statute, the maximum fine or
19 deferral fee in lieu of a fine shall not exceed Seven Hundred Fifty
20 Dollars (\$750.00).

21 5. The ordinances may prescribe costs pursuant to the
22 provisions of Section 27-126 of this title or imprisonment not
23 exceeding sixty (60) days or both ~~the~~ such fine and imprisonment,
24 ~~provided, that municipalities.~~ Municipalities having only a

1 municipal court not of record shall not have authority to enact any
2 ordinance making unlawful any act or omission declared by state
3 statute to be punishable as a felony; ~~provided further, that~~
4 ~~municipalities.~~

5 6. Municipalities having a municipal court not of record may
6 enact ordinances prescribing maximum fines of One Thousand Dollars
7 (\$1,000.00) and costs or imprisonment not exceeding ninety (90) days
8 or both such fine and imprisonment for violations of municipal
9 ordinances regulating the pretreatment of wastewater and regulating
10 stormwater discharges. If imprisonment is available for the
11 offense, then that person charged shall have a right to a jury
12 trial.

13 D. Municipalities having both municipal criminal courts of
14 record and municipal courts not of record may enact ordinances,
15 within the authority of this section, for each court.

16 E. No municipality may levy a fine or deferral fee in lieu of a
17 fine of over Fifty Dollars (\$50.00) until it has compiled and
18 published its penal ordinances as required in Sections 14-109 and
19 14-110 of this title.

20 F. No municipality may levy a fine of more than Ten Dollars
21 (\$10.00) nor court costs of more than Fifteen Dollars (\$15.00) for
22 exceeding the posted speed limit by no more than ten (10) miles per
23 hour upon any portion of the National System of Interstate and
24 Defense Highways, federal-aid primary highways, ~~and~~ or the state

1 highway system which ~~are~~ is located on the outskirts of any
2 municipality as determined in Section 2-117 of Title 47 of the
3 Oklahoma Statutes.

4 G. If any fine or deferral fee in lieu of a fine, as stated in
5 a municipal ordinance, or any other fine or fee schedule adopted by
6 a municipality, exceeds the maximum amount authorized by this
7 section or other applicable statutes for the same offense, the
8 amount is void and unenforceable to the extent of the excess amount
9 and shall be deemed reformed and reduced by operation of law to the
10 maximum lawful amount.

11 SECTION 2. It being immediately necessary for the preservation
12 of the public peace, health or safety, an emergency is hereby
13 declared to exist, by reason whereof this act shall take effect and
14 be in full force from and after its passage and approval.

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16 COMMITTEE REPORT BY: COMMITTEE ON GOVERNMENT OVERSIGHT, dated
17 04/14/2026 - DO PASS
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